

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION REGARDING THE PROPOSED COWBOY SOLAR PROJECT, AUTHORIZING THE MAYOR TO PURSUE AND SECURE POSSIBLE IMPACT ASSISTANCE FUNDS ON BEHALF OF THE CITY AS PROVIDED BY WYOMING LAW."

WHEREAS, on January 12, 2024, Enbridge Inc. submitted to the Wyoming Department of Environmental Quality, Industrial Siting Division, an Industrial Siting Permit Application in accordance with Chapter 12, Title 35 of Wyoming Statute to construct and operate an industrial facility, in the form of a solar energy and battery storage project, in unincorporated Laramie County (hereinafter referred to as "Cowboy Solar Project");

WHEREAS, a contested case hearing is currently scheduled to occur before the Industrial Siting Council March 25, 2024, through which the Council will review the socio-economic and environmental impacts of the industrial facility before issuing a permit for construction;

WHEREAS, the Cowboy Solar Project will be constructed on private land in Laramie County approximately four (4) miles southeast of Cheyenne, Wyoming, east of U.S. Highway 85 and both north and south of County Road 203. Regional access to the project site will be provided via U.S. Highway 85, and primary access will be provided by County Road 203;

WHEREAS, the total area for the Cowboy Solar Project is approximately three thousand eight hundred forty-five (3,845) acres with the goal of the project to generate approximately seven hundred seventy-one (771) megawatts alternating current solar energy, paired with battery storage, and for the electricity to be used by large industrial corporate customers within Wyoming;

WHEREAS, the Cowboy Solar Project will consist of a 400 megawatt alternating current (MWac) and a 371 MWac solar generation facility, respectively. Each solar generating facility will have a collection system, collection substation and battery energy storage system, each of which will include batteries composed of lithium iron phosphate;

WHEREAS, the Cowboy Solar Project will consist of two (2) phases—"Cowboy Solar I" and "Cowboy Solar II," and construction period for the project is anticipated to begin in March of 2025 and continue through August of 2027;

WHEREAS, it is further anticipated that Cowboy Solar I will begin construction in March of 2025, will be ninety percent (90%) complete by October of 2026, and will be completed and fully operational by January of 2027. In turn, Cowboy Solar II construction is projected to begin in May of 2026, to be ninety percent (90%) complete by June of 2027, and be complete and fully operational by August of 2027;

WHEREAS, local governments that will be primarily affected by the construction of industrial facilities are entitled to impact assistance payments for any unmitigated impacts caused by facility construction activities; and

WHEREAS, based on the geographic location of the site for the Cowboy Solar Project, it is anticipated that the City of Cheyenne, Laramie County and the Town of Pine Bluffs will be the local governments that will be primarily affected by the construction of this industrial facility, and thus, qualified to receive impact assistance payments.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the Mayor is authorized to pursue and secure impact assistance payments on behalf of the City and to coordinate with the other local governments that will be primarily affected by the construction of the Cowboy Solar Project as the Industrial Siting Permit Application is being processed and reviewed by the Industrial Siting Division and ultimately considered by the Industrial Siting Council.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2024.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk